

Punam Yadav vs Sunil Kumar Yadav on 8 May, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

IN THE HIGH COURT OF UTTARAKHAND

Civil Transfer Application No. 35 of 2012

Punam Yadav
W/o Shri Sunil Kumar Yadav
D/o Late Sri Kailash Chand
R/o Brahmpuri (Rawli Mahdood)
P.S. Ranipur, District Haridwar

.....Petitioner

Versus

Sunil Kumar Yadav
S/o Sri Kalu Ram Yadav
R/o Village & Post Ranipokhri
Tehsil Rishikesh, District Dehradun

.....Respondent

Mr. B.S. Negi, Advocate, present for the applicant. None present for the respondent.

Hon'ble Prafulla C. Pant,J.

Heard.

2. By means of this petition moved under section 24 of Code of Civil Procedure, 1908 (for short C.P.C.) the petitioner (wife) has sought transfer of Suit No. 3 of 2009, Sunil Kumar vs. Punam Yadav filed under section 13 of Hindu Marriage Act, 1955 by her husband, pending before Additional Judge, Family Court, Rishikesh to Judge, Family Court, Haridwar.

3. In para 7 of the affidavit filed with the application it has been stated that the financial condition of the applicant is bad. It is further stated in para 11 of the affidavit that she has

already moved an application under section 125 of Cr.P.C. before the Judge, Family Court Haridwar, for maintenance which is registered as case no. 32 of 2009 Punam Yadav vs. Sunil Kumar Yadav. In para 13 of the affidavit it has been stated that due to the pathetic condition of the applicant she is unable to go to Rishikesh to defend the case filed by her husband there.

4. Having considered submissions of learned counsel for the appellant, in the above circumstances, this Court is of the view that the application for transfer of Suit No. 3 of 2009 Sunil Kumar vs. Punam Yadav filed under section 13 of Hindu Marriage Act, 1955, by the husband, pending before Additional Judge, Family Court, Rishikesh, deserves to be transferred to the court of Judge, Family Court, Haridwar.

5. Accordingly the application under section 24 of C.P.C. 1908 is allowed. Suit No. 3 of 2009 Sunil Kumar vs. Punam Yadav (under section 13 of Hindu Marriage Act, 1955) pending before the Additional Judge, Family Court, Rishikesh is transferred to the court of Judge, Family Court, Haridwar, for further proceedings and disposal of the suit.

Parul

(Prafulla C. Pant, J.)
08.05.2013